Rajbir Singh vs State Of Punjab on 20 March, 2026

CRM-M No.2593 of 2026 (O & M) -1-

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH
114

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CRM-M No.2593 of 2026 (O & M)
Date of decision : 20.3.2026
Date of uploading : 20.3.2026

Rajbir Singh .....Petitioner

Versus

State of Punjab .....Respondent

CORAM: HON'BLE MR. JUSTICE SUMEET GOEL

Present: Mr. G.S. Bawa, Advocate, for the petitioner

Mr. Hemant Aggarwal, DAG, Punjab

SUMEET GOEL, J. (ORAL)

1. Present 2nd petition has been filed under Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (for short 'BNSS') for grant of regular bail to the petitioner in case FIR No.79 dated 8.6.2023 under Sections 302, 120-B, 148, 149 of the IPC and Sections 25, 27/54/59 of Arms Act, 1959, registered at Police Station Ghuman, Police District Batala, District Gurdaspur.

2. The case set up in the FIR in question (as set out in the present petition by the petitioner) is as follows:-

> 'Statement of Charanjit Singh son of Harbhajan Singh resident of Chone, Police Station Ghuman, age about 31 years, mobile number 81464-45680, stated that I am a resident of the above-mentioned address and I work as a travel agent at Jalandhar. I have three sisters; one sister is already married and two sisters are unmarried. I am also unmarried. My father used to run a meat shop at Chone bridge canal in the village near our 1 of 6 CRM-M No.2593 of 2026 (O & M) -2-

house. Last night, all of us family members had dinner and went to sleep in our house. My father had laid a bed and was sleeping on the inner side of the gate. At about 12:30 AM, I heard the sound of gunshots in our street. I immediately came out of my room and saw that some unknown persons had fired gunshots at our gate and fled away. I saw that my father had received a bullet injury on the left side of his chest. Then I put my father in the car and along with Hardeep Singh son of Sardool

Singh and Mandeep Singh son of Jaswinder Singh residents of Chone, we reached Civil Hospital Batala, where the doctor declared my father dead. On the intervening night of 07/08-06-2023, some unknown persons shot my father dead, against whom legal action be taken. I have deposited my father's dead body at Civil Hospital Batala. I am coming along with my uncle Ratan Singh to you and you have met us. My statement has been written, read over to me, found correct, and I signed it. Sign in English: Charanjit Singh.'

3. Learned counsel for the petitioner has argued that the petitioner is in custody since 19.6.2023. Learned counsel has further argued that the FIR-complainant (Charanjit Singh) has not identified the petitioner. Learned counsel has further submitted that the motive behind the murder is that the deceased has illicit relations with sister of one Amandeep Singh. Learned counsel has further submitted that somewhat similarly placed co-accused Gurpreet Singh @ Lala, Sher Singh @ Shera, Kabal Singh, Balraj Singh @ Baja and Amandeep Singh have been granted the concession of regular bail vide orders dated 19.11.2025 passed in CRM-M No.21705 of 2025, and dated 15.12.2025 passed in CRM-M No.40304 of 2024 (bunch of 4 cases) respectively. Learned counsel has further submitted that the petitioner in custody since June 2023. Thus, regular bail is prayed for.

4. Learned State counsel has opposed the present petition by 2 of 6 CRM-M No.2593 of 2026 (O & M) -3- arguing that the allegations raised are serious in nature and thus the petitioner does not deserve the concession of the regular bail. Learned State counsel seeks to place on record custody certificate dated 19.3.2026 in Court, which is taken on record.

5. I have heard counsel for the parties and have gone through the available records of the case.

6. The petitioner was arrested on 19.6.2023 wherein after investigation was carried out; challan was prepared on 6.9.2023 and subsequently filed. Total 34 prosecution witnesses have been cited, out of which only 14 have been examined and 4 have been given up till date. It is thus indubitable that culmination of trial will take its own time. The rival contentions raised at Bar give rise to debatable issues which shall be ratiocinated upon during the course of trial. This Court does not deem it appropriate to delve deep into these rival contentions, at this stage, lest it may prejudice the trial. Nothing tangible has been brought forward to indicate the likelihood of the petitioner absconding from the process of justice or interfering with the prosecution evidence. 6.1 As per custody certificate dated 19.3.2026 filed by learned State counsel, the petitioner has already suffered incarceration for a period of 2 years, 8 months and 18 days. As per the said custody certificate, the petitioner is stated to be involved in 01 more case/FIR registered under the Prisons Act. Indubitably, the antecedents of a person are required to be accounted for while considering a regular bail petition preferred by him. However, this factum cannot be a ground sufficient by itself, to 3 of 6 CRM-M No.2593 of 2026 (O & M) -4- decline the concession of regular bail to the petitioner in the FIR in question when a case is made out for grant of regular bail qua the FIR in question by ratiocinating upon the facts/circumstances of the said FIR. Reliance in this regard can be placed upon the judgment of the Hon'ble Supreme Court in Maulana Mohd. Amir Rashadi v. State of U.P. and another, 2012 (1) RCR (Criminal) 586; a Division Bench judgment of the Hon'ble Calcutta High Court in case of Sridhar Das v. State, 1998 (2) RCR (Criminal) 477 & judgments of this Court in CRM-M No.38822-2022 titled as Akhilesh Singh v. State of Haryana, decided on

29.11.2021, and Balraj v. State of Haryana, 1998 (3) RCR (Criminal)

191. 6.2 Indubitably, the present petition is the 2nd attempt by the petitioner to secure regular bail. The last bail plea preferred by the petitioner was dismissed as withdrawn on 30.8.2024. Keeping in view the entirety of the factual milieu of the case in hand, especially extended incarceration of the petitioner and slow pace of trial, this Court is inclined to favourably consider the instant plea for bail. A profitable reference, in this regard, can be made to a judgment of this Court passed in CRA-S-2332-2023 titled as Rafiq Khan versus State of Haryana and another; relevant whereof reads as under:

> "10. As an epilogue to the above discussion, the following principles emerge:
>
> I. Second/successive regular bail petition(s) filed is maintainable in law & hence such petition ought not to be rejected solely on the ground of maintainability thereof. II. Such second/successive regular bail petition(s) is maintainable whether earlier petition was dismissed as withdrawn/dismissed as not pressed/dismissed for non-prosecution or earlier petition was dismissed on merits.

> III. For the second/successive regular bail petition(s) to succeed, the petitioner/applicant shall be essentially/pertinently required to show substantial change in circumstances and showing of a mere superficial or ostensible change would not suffice. The metaphoric expression of seeking second/successive bail plea(s) ought not be abstracted into literal iterations of petition(s) without substantial, effective and consequential change in circumstances.

IV. No exhaustive guidelines can possibly be laid down as to what would constitute substantial change in circumstances as every case has its own unique facts/circumstance. Making such an attempt is nothing but an utopian endeavour. Ergo, this issue is best left to the judicial wisdom and discretion of the Court dealing with such second/successive regular bail petition(s).

V. In case a Court chooses to grant second/successive regular bail petition(s), cogent and lucid reasons are pertinently required to be recorded for granting such plea despite such a plea being second/successive petition(s). In other words, the cause for a Court having successfully countenanced/entertained such second/successive petition(s) ought to be readily and clearly decipherable from the said order passed." Suffice to say, further detention of the petitioner as an undertrial is not warranted in the facts and circumstances of the case.

7. In view of above, the present petition is allowed. Petitioner is ordered to be released on regular bail on his furnishing bail/surety bonds to the satisfaction of the Ld. concerned CJM/Duty Magistrate. However, in addition to conditions that may be imposed by the concerned CJM/Duty Magistrate, the petitioner shall remain bound by the following conditions:-

(i) The petitioner shall not mis-use the liberty granted.

(ii) The petitioner shall not tamper with any evidence, oral or documentary, during the trial.

(iii) The petitioner shall not absent himself on any date before the trial.

(iv) The petitioner shall not commit any offence while on bail.

(v) The petitioner shall deposit his passport, if any, with the trial Court.

(vi) The petitioner shall give his cell-phone number to the Investigating Officer/SHO of concerned Police Station and shall not change his cell-phone number without prior permission of the trial Court/Illaqa Magistrate.

(vii) The petitioner shall not in any manner try to delay the trial.

8. In case of breach of any of the aforesaid conditions and those which may be imposed by concerned CJM/Duty Magistrate as directed hereinabove or upon showing any other sufficient cause, the State/complainant shall be at liberty to move cancellation of bail of the petitioner.

9. Ordered accordingly.

10. Nothing said hereinabove shall be construed as an expression of opinion on the merits of the case.

11. Pending miscellaneous application(s), if any, stand disposed of accordingly.

(SUMEET GOEL)
JUDGE

20.3.2026
Ashwanii

Whether speaking/reasoned: Yes/No
Whether reportable: Yes/No